

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman., Department Advocate's Office, March 28, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29544 against Police Sergeant Smithu Samuel, Tax Registry No. 933322. The case was conferenced on March 18, 2025, before Assistant Deputy Commissioner of Trials Facio-Lince, who approved the negotiated penalty of a Schedule A Command Discipline with a forfeiture of THREE (3) vacation days for DADS No. 2023-29544 after accepting the finding(s) of substantiation of the allegations contained in the Charges and Specifications. Charges and specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

APPROVED

APR 22 2025
Jessica S. Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

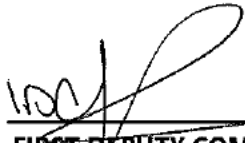
PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031396BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, SAMUEL	FIRST SMITHU	M.I.	COMMAND 061
SHIELD NO. 2294	TAX REGISTRY NO. 933322	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2003	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Smithu SAMUEL, on or about September 20, 2022, at approximately 1203, while assigned to 061 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused their authority as a member of the New York City Police Department, in that SGT SAMUEL searched § 87(2)(b) in Brooklyn without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 3.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Sergeant Smithu SAMUEL, on or about September 20, 2022, at approximately 1203, while assigned to 061 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused their authority as a member of the New York City Police Department, in that SGT SAMUEL failed to provide § 87(2)(b) with a business card without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER04/08/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER4/22/25
DATE

**DISPOSITION OF CHARGES**

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SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
3. Sergeant Smithu SAMUEL, on or about September 20, 2022, at approximately 1203, while assigned to 061 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that SGT SAMUEL entered § 87(2)(b) in Brooklyn without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER

04/08/25
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)


POLICE COMMISSIONER

4/22/25
DATE